

Syllabus

a “privilege” to withhold certain “official paper[s].” *United States v. Burr*, 25 F. Cas. 187, 192 (No. 14,694) (CC Va.). And when a subpoena issued to President Richard Nixon, the Court rejected his claim of “absolute privilege.” *United States v. Nixon*, 418 U. S. 683, 703. But recognizing “the public interest in candid, objective, and even blunt or harsh opinions in Presidential decisionmaking,” it held that a “presumptive privilege” protects Presidential communications. *Id.*, at 708. Because that privilege “relates to the effective discharge of a President’s powers,” *id.*, at 711, the Court deemed it “fundamental to the operation of Government and inextricably rooted in the separation of powers under the Constitution,” *id.*, at 708. Pp. 610–613.

(ii) Criminally prosecuting a President for official conduct undoubtedly poses a far greater threat of intrusion on the authority and functions of the Executive Branch than simply seeking evidence in his possession. The danger is greater than what led the Court to recognize absolute Presidential immunity from civil damages liability—that the President would be chilled from taking the “bold and unhesitating action” required of an independent Executive. *Fitzgerald*, 457 U. S., at 745. Although the President might be exposed to fewer criminal prosecutions than civil damages suits, the threat of trial, judgment, and imprisonment is a far greater deterrent and plainly more likely to distort Presidential decisionmaking than the potential payment of civil damages. The hesitation to execute the duties of his office fearlessly and fairly that might result when a President is making decisions under “a pall of potential prosecution,” *McDonnell v. United States*, 579 U. S. 550, 575, raises “unique risks to the effective functioning of government,” *Fitzgerald*, 457 U. S., at 751. But there is also a compelling “public interest in fair and effective law enforcement.” *Vance*, 591 U. S., at 808.

Taking into account these competing considerations, the Court concludes that the separation of powers principles explicated in the Court’s precedent necessitate at least a *presumptive* immunity from criminal prosecution for a President’s acts within the outer perimeter of his official responsibility. Such an immunity is required to safeguard the independence and effective functioning of the Executive Branch, and to enable the President to carry out his constitutional duties without undue caution. At a minimum, the President must be immune from prosecution for an official act unless the Government can show that applying a criminal prohibition to that act would pose no “dangers of intrusion on the authority and functions of the Executive Branch.” *Fitzgerald*, 457 U. S., at 754. Pp. 613–615.

(3) As for a President’s unofficial acts, there is no immunity. Although Presidential immunity is required for *official* actions to ensure that the President’s decisionmaking is not distorted by the threat of